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An Execution Most Foul

T.R. Andhyarujina

The execution of Afzal Guru on 9 February 2013 was an inhumane act by the Government of India. Afzal Guru was hanged seven years after the Supreme Court's pronouncement of the death sentence on him on 4 August 2005 and over six years after his clemency petition to the President of India on 8 November 2006. During this period, he and his family remained in agonizing suspense over his fate every day—a situation that is condemned by all civilized countries and our Supreme Court. The rejection of his petition by the President after over six years, on 3 February 2013, was kept secret and deliberately not communicated to his family, lest it become the subject of judicial consideration as has been done in other cases of delayed execution. Within a few days of the rejection of his mercy petition, the execution was carried out in secrecy on 9 February 2013 without informing his family, and his body was buried in equal secrecy in a grave inside Tihar Jail, New Delhi.

Six Years

A petition made to the President for pardon, reprieve or remission of punishment under Article 72 of the Constitution is a right of a convict and until the petition is rejected the government cannot carry out the sentence. In disposing of the petition under Article 72, the President does not act at his discretion but on the aid and advice of the government. This was held by the Supreme Court in Kehar Singh's case in 1989. The crucial question was whether the execution could be carried out after a prolonged delay of over six years from the day Afzal Guru made his petition to the President.

The disposal of Afzal Guru's petition became a political matter, with the BJP's unseemly demand for his execution and its making it an issue in the ensuing elections. For its own political consideration, the government did not